SAMSON ABEL
Versus
THE STATE

HIGH COURT OF ZIMBABWE
**MUZOFA & BACHI-MZAWAZI JJ**
CHINHOYI, 26 November 2025

**Criminal Appeal**

*Appellant* in person
*M. M. Chitsiga,* for the State

**MUZOFA J:** After hearing parties in this case, we dismissed the appeal against both conviction and sentence. The appellant requested for the written reasons which are provided herein.

The appellant was convicted after a trial on one count of rape in contravention of s65 of the Criminal Law (Codification and Reform Act) [*Chapter 9:23*]. He was sentenced to 15 years imprisonment of which 3 years was conditionally suspended for 5 years.

The factual background is largely not disputed. The appellant was married to the complainant's sister; he is the complainant's brother-in-law. The complainant was aged 12 years at the time. The complainant's maternal grandfather passed on. Her mother intended to go to bury her father. The mother invited her sister (married to the appellant) together with the appellant to house keep her place and children at Makosa farm while she was away at the funeral. This was in January 2023.

The couple took up the responsibility to take care of the home. On an unknown date towards end of January 2023, the complainant's sister Vimbai Matambo went to purchase some fish. The appellant and the complainant remained at the homestead. The complainant went to bath. It is alleged that the appellant followed her. She was naked in the bathroom; appellant dragged her out to a spare bedroom and raped her. She reported the matter to her mother when she returned from the funeral.

The accused denied the offence. He said if the complainant was raped it could be someone else. The complainant's family falsely incriminated him to get rid of him as a son in

law. He also put in issue the delay in making the report, the report was made almost a month later.

**Proceedings before the court *a quo***

To prove its case the State led evidence from three witnesses, the complainant and her mother Loice Manyika "Loice". The complainant narrated how the offence took place and her reasons why she did not report to her sister when she returned from buying fish. It seems she was unclear of the dates. Loice, her mother shed some light on the dates and she confirmed receiving a report from the complainant about the rape.

The third witness was a Nurse at Chinhoyi Provincial Hospital. She tested the complainant for syphilis and HIV. She tested negative to both. The appellant was not tested since the complainant was negative. However, she noted some white discharge on the complainant's vagina. She prescribed some antibiotics. She said the discharge was not smelling it could have been an infection. She did not state the type of infection.

In his defence the accused persisted in his denial insisting that he was falsely incriminated, the complainant had some boys that could have raped her. Further he said the complainant had a sexually transmitted disease and he had no infection that showed that he did not rape the complainant.

After considering the evidence before it, the Court *a quo* found the complainant credible. It found that the complaint was made freely and voluntarily. It rejected the appellant's defence of bad blood. On the point that the complainant dated numerous boys in the locality, the Court *a quo* reasoned that the allegation was raised in the accused's evidence in chief, the complainant did not get an opportunity to comment on it. It dismissed it as an afterthought.

The appellant was then convicted as already stated.

**<u>The Appeal</u>**

Dissatisfied by both the conviction and sentence, the appellant appealed the decision of the Court *a quo*.

As against conviction the appellant raised the following issues;

1. The Court *a quo* erred in not accepting the Nurse's evidence that the complainant was not infected by a sexually transmitted disease.

2. The court *a quo* erred in accepting the evidence by the complainant's mother who had fabricated the case.
3. The court *a quo* erred by not believing his defence outline.

As against sentence he impugns the sentence that the lower court erred in imposing a harsh and retributive sentence to an innocent accused.

Before this court the appellant submitted that there were trumped up charges by Loice who no longer wanted him as a son in law since he was poor. He also raised issue on the report that it was made after Loice noticed some behavioural changes on the complainant. The complainant could have had sexual relations with some of the boys she used to hang around with. Further, that the complainant's itching vagina could mean she had a sexually transmitted disease, and he did not have such. So, he could not have raped her.

The State opposed the appeal. It opined that the complainant was a credible witness. There was no bad blood between the complainant and the appellant. On the inconsistencies, it submitted that they are immaterial, they do not go to the root of the case. It relied on the case of *S v Mavhura* HH 22/13.

**Analysis**

**Ad Conviction**

As can be gleaned from the grounds of appeal, the appellant does not impugn the complainant's evidence on credibility at all. His attack is on the mother Loice. If the appellant accepts the complainant's evidence, then there is no basis to impugn Loice's evidence.

In rape cases the starting point is the complainant where she can give evidence. The authoritative cases are in agreement that the complainant must make a report soon after its occurrence to show consistency of the complainant's evidence and absence of consent. The report must be voluntary and not as a result of leading questions. The leading cases include *S v Banana 2000(1) ZLR 6707(S) AT P616.See also R v Petros 1967 RLR 35 GD at 39G-H, R v C 1955(4) SA 40, S v Kamupakera HH160/*16 on these issues.

In his grounds of appeal, the appellant does not attack the complainant's evidence based on the principles that assists a court to make a determination on credibility. Some of the issues were thrown in during his address in Court. Despite that the Court *a quo* addressed all the issues.

I address the grounds of appeal first.

*The sexually transmitted infection*

The ground of appeal on the STI is baseless it has no leg to stand on. The appellant's point is that the complainant had an STI since her mother said she had a discharge. He was not infected with an STI otherwise his wife the complainant's sister would also have the same STI. In other words, had he raped the complainant, he too could be infected. Since he was not infected the complainant was raped or had consensual intercourse with someone.

The acceptable evidence before the court *a quo* was that complainant tested negative for syphilis and HIV, but had some discharge. She was prescribed some antibiotics. Even if the medication was prescribed during the Court proceedings Loice kept on indicating that the complainant was unwell. It seems nobody knew what exactly afflicted the complainant. There was no conclusive evidence that the complainant had an STI before the court *a quo*. The appellant was simply clutching at straws.

In any event the presence or otherwise of an STI was not conclusive to tilt the decision since the appellant was not tested. It remained as presented neither corroborating the State case nor the defence.

*The appellant's defence*

As regards the appellant's defence, the appellant wants this court to find that the court *a quo* ought to have accepted his version of events as against that of the complainant. His defence of bad blood having motivated false incrimination. Also, that he was an unwanted son in law who was a man of straw.

In *S v Dube VS SC 31/25* and the cases cited therein the court re-stated the legal principle applicable in dealing with the accused's defence. No onus rests on the accused to prove his/her defence. See *S* v *Siwela and Another* HB 2023/23. The burden of proof in criminal cases is on the State to prove its case beyond a reasonable doubt, that standard has been accepted in many authoritative cases however, "It need not reach certainty, but it must carry a high degree of probability", per *Miller v Minister of Pensions [1946] (2) All ER 372 (KB).*

The appellant was legally represented in the court *a quo*. In cross examining the complainant it was simply alleged the complainant exploited the hatred between her mother and the appellant and falsely implicated him. This was denied. The complainant then indicated

that the two were in good books. The appellant is a prophet he once assisted her mother; this was not challenged. Similarly, Loice the mother, said she had no bad blood she regarded appellant as a son in law. Loice's evidence showed she trusted the appellant. Her evidence was as follows,

On page **32** of the record, Loice was asked the following questions by the prosecutor;

Q "And yourself how were you relating?

A. We were relating well. When I left complainant in his custody, it was out of trust

Q. Any reason to lie against accused person?

A. No. I took him as my son in law.

This was not controverted under cross examination. We find no evidence of bad blood. To demonstrate that Loice accepted the appellant as a responsible son in law she invited the couple into her home to take care of her children and her home. That means she trusted the appellant. No one can entrust her home and children to a person who has an acrimonious relationship with.

On the other hand, the appellant's explanation is that his in-laws no longer wanted him. This was not even put to (Loice) mother-in-law to comment. As stated in *Dube v S (Supra)* for the accused's version to be successfully considered it must be reasonably be true in substance. The appellant's version had no substance; no foundation was even laid for it to be assessed whether it has substance. There was no bad blood established from the evidence.

While the appellant made concerted efforts to discredit the complainant before this court, he had not set anything on her credibility as a ground of appeal. That as it maybe the evidence about other men was a bare statement. It was only in his defence case that he mentioned Tapiwa. The court *a quo* cannot be faulted in its finding that the appellant knitted his defence as the trial progressed. The allegation about Tapiwa was not only omitted in the defence outline, it was not even put to the complainant nor her mother only to pop up when none of the State witnesses could comment.

We find no merit in the ground of appeal on the appellant's defence.

In the final analysis we found that there was evidence which carried a high degree of probability against the accused. It was common cause that the appellant remained with the complainant, in the absence of his wife. He was at the scene of crime. It is not in dispute that

she tried to report to her sister unsuccessfully. She later reported to her mother. The delay in reporting was not fully canvassed but complainant said she was threatened with a red thread.

We do not lose sight of the fact that the appellant was a prophet. Obviously for a 12-year-old whose mother was once treated by appellant the threat was real. It was not in dispute that appellant once proposed love to the complainant in 2022. There were discrepancies in the dates as to when the offence took place and when the report was made. In our view those were immaterial discrepancies that did not go to the root of the offence. Similarly, nothing turns on how the offence surfaced. The complainant said she told her mother on her own accord, the mother said she observed some character change. What is important is that a report was made freely and voluntarily.

**Ad Sentence**

Before addressing the appeal against sentence, it is important to comment on the way the grounds of appeal were drafted. The second ground of appeal passes for a paragraph in heads of argument. After setting out the ground of appeal the next paragraph was set out as follows,

'In *Tirivanhu Ndoziva HH43/11* who had been facing two counts of rape having raped two minor girls aged 4 and 8 was sentenced to 20 years imprisonment. On appeal the High Court quashed the sentence and he was left to serve 10 years imprisonment with one year suspended on usual conditions. Tirivanhu Ndoziva was aged 21 years of age and the appellate court took age factor (*sic*)into main consideration.'

This was an amplification of the ground of appeal. There is no provision to amplify a ground of appeal in the notice of appeal. The grounds of appeal are amplified and supported by case law or legal principles in the heads of argument. A notice of appeal must contain grounds that are clear and specific. A long, winding general ground of appeal is invalid. See *Chimaiwache v The State SC18/23.*

In respect of sentence, sentencing is purely within the province of the trial Court. It is an exercise of discretion. An appeal Court can only interfere with an exercise of discretion where the Court *a quo* committed an irregularity or exercised its discretion so unreasonably or improperly as to vitiate its decision. See *Musasa* v *The State* SC 45/02. The record of proceedings must show that an error was made in the exercise of discretion: either that the court

acted on a wrong principle, allowed extraneous or irrelevant considerations to affect its decision or made mistakes of fact or failed to take into consideration relevant matters in the determination of the question before it. This principle has been stated and reinforced in a long line of cases in *Ncube v The State* SC 126/01, *Chimwaiche (supra)* and *Chivhayo* v *The State* SC 94/95.

The record of proceedings does not show any misdirection. The Court *a quo* imposed a sentence that was within its jurisdiction and provided for in the penalty provision. In s65 (1) (b) (i) where the rape was committed in aggravating factors a sentence of life imprisonment or any lesser sentence but not less than 15 years imprisonment can be imposed**.**

In assessing sentence the Court *a quo* considered it aggravating that the appellant was married to the complainant's sister. He was therefore in a position of trust. When the offence was committed the appellant was in semi loco parentis as the complainant's mother had left the complainant in their custody. The Court also considered that the rape involved violence and threats. The complainant was dragged from the bathroom and raped in one of the bedrooms.

The sentence provided in the Criminal Law Code shows that the Legislature views rape as a serious offence. In this case it was committed against a young girl. The Courts must play its part to protect the girl child. In the case of *S* v *Banda* 2002 (1) ZLR 156 the court held that people who rape children should receive effective sentences of not less than 10 years this the amendment to the Act. However, the sentiments in that case underpins the policy principle that in rape cases a long custodial sentence is appropriate. The Criminal Law Code provides for 15 years imprisonment where the offence was committed in aggravating circumstances as in this case. An effective 12 years imprisonment does not induce a sense of shock.

In view of the foregoing the following order was issued,

The appeal is dismissed.

Judge Bachi-Mzawazi Agrees

*National Prosecuting Authority,* the State's legal practitioners